APPSC GROUP 1 / GROUP 2 — INDIAN POLITY

Volume 3: Federalism, Local Government and Elections

Centre–State relations · Finance Commission and GST Council · Rajamannar, Sarkaria, Punchhi · Panchayati Raj and Urban local bodies · Union Territories, Fifth and Sixth Schedules · Elections, parties and reforms

READ THIS FIRST

How to use this volume:
1. **New format:** each topic is a numbered 'What is it?' block with a picture, a key-facts table and use cases, and each chapter ends with an exam MCQ. Colours: **Blue** = simple explanation · **Orange** = Andhra Pradesh / Telangana link · **Red** = traps · **Green** = 2-minute revision · **Purple** = exam MCQ · **Yellow** = LATEST (verify).
2. Idea: India is a Union of States. Chapters 1–4 explain how the Centre and States share power, money and responsibility. Chapters 5–6 go below the State, to villages, towns and special areas. Chapter 7 covers the ballot box that gives power to all of them.
3. Syllabus: Group 1 Prelims Part B (federal structure; devolution of power and finances to local levels; constitutional authorities; Panchayati Raj); Mains Paper III A2, A3; Group 2 Paper I Section B (Centre–State relations; Rajamannar, Sarkaria, Punchhi; parties, elections, anti-defection; Balwant Rai Mehta, Ashok Mehta; 73rd and 74th Amendments).
4. Plan: 7 chapters in 7 days; revise green boxes on day 3 and day 8; then Polity Mock Test 3.

Syllabus map

Syllabus item	Chapter
Federal structure; legislative and administrative relations	Ch 1–2
Financial relations: Finance Commission, GST Council, NITI Aayog	Ch 3
Commissions on Centre–State relations: Rajamannar, Sarkaria, Punchhi	Ch 4
Panchayati Raj, community development, Balwant Rai Mehta, Ashok Mehta, 73rd Amendment	Ch 5
Urban local government (74th), Union Territories, Scheduled Areas	Ch 6
Political parties, elections, electoral reforms, anti-defection	Ch 7

CHAPTER 1 — Federalism and Legislative Relations

Part XI, Articles 245–255 · Seventh Schedule

1. What is federalism?

IN SIMPLE WORDS (what / how / why)

Federalism = two governments, one country. Imagine a school with a head-master (the Centre) and class teachers (the States). Each has its own area of control, and a rule-book (the Constitution) says who decides what. India's framers chose this because the country is too large and diverse to run from one place — but they gave the head-master more power, because they had just seen Partition. So India is called a **'Union of States'** (Art 1): the States did not make the Union, and **no State can secede**.

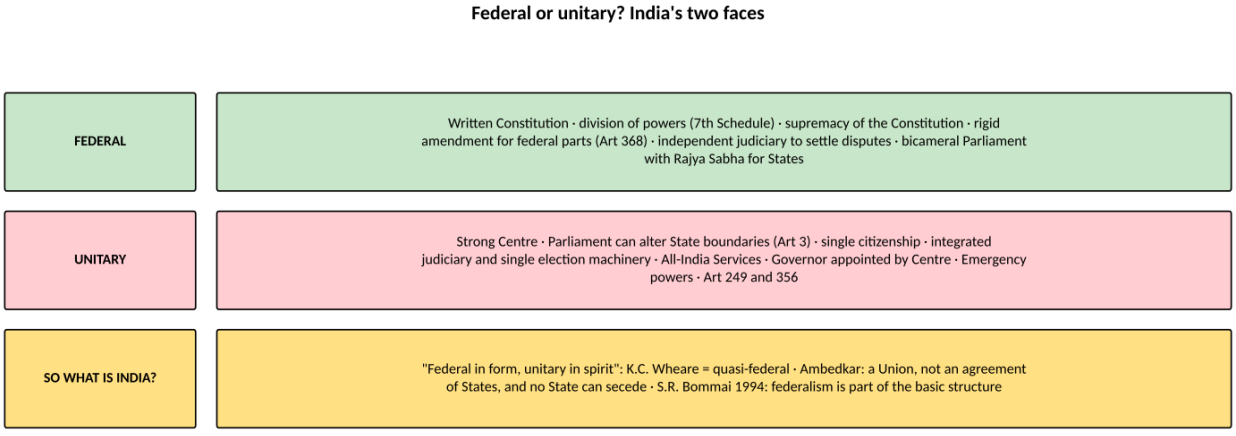


Figure 1: Federal and unitary features of India

Key fact	Detail
Term	The word 'federation' is **not** used in the Constitution; Art 1 says 'Union of States'. **Dr Ambedkar:** the Union is not the result of an agreement between States, so no State has the right to secede.
Scholars	**K.C. Wheare:** 'quasi-federal'; **Granville Austin:** 'co-operative federalism'; **Alexandrowicz:** 'federation with a strong centralising tendency'.
Key cases	**State of West Bengal v Union of India (1963):** Parliament is supreme over States; **S.R. Bommai (1994):** federalism is a basic feature; **NCT of Delhi v Union (2018, 2023):** elected government must have control over services, except police, public order and land (Delhi), followed by the **GNCTD (Amendment) Act 2023**.
Trends	Cooperative federalism (NITI Aayog, GST Council) → **competitive federalism** (State rankings) → **fiscal federalism** debates (Finance Commission shares, cesses).

2. How are legislative powers shared?

IN SIMPLE WORDS (what / how / why)

Three Lists in the Seventh Schedule decide who can make laws on which subject. On a **Union List** subject only Parliament can legislate; on a **State List** subject only the State; on a **Concurrent List** subject both can legislate, but if they clash, **the Union law wins** (Art 254). Anything nobody thought of (e.g. a new type of tax or technology) is a **residuary power** — and it belongs to the **Centre** (Art 248), the reverse of the USA and Australia.

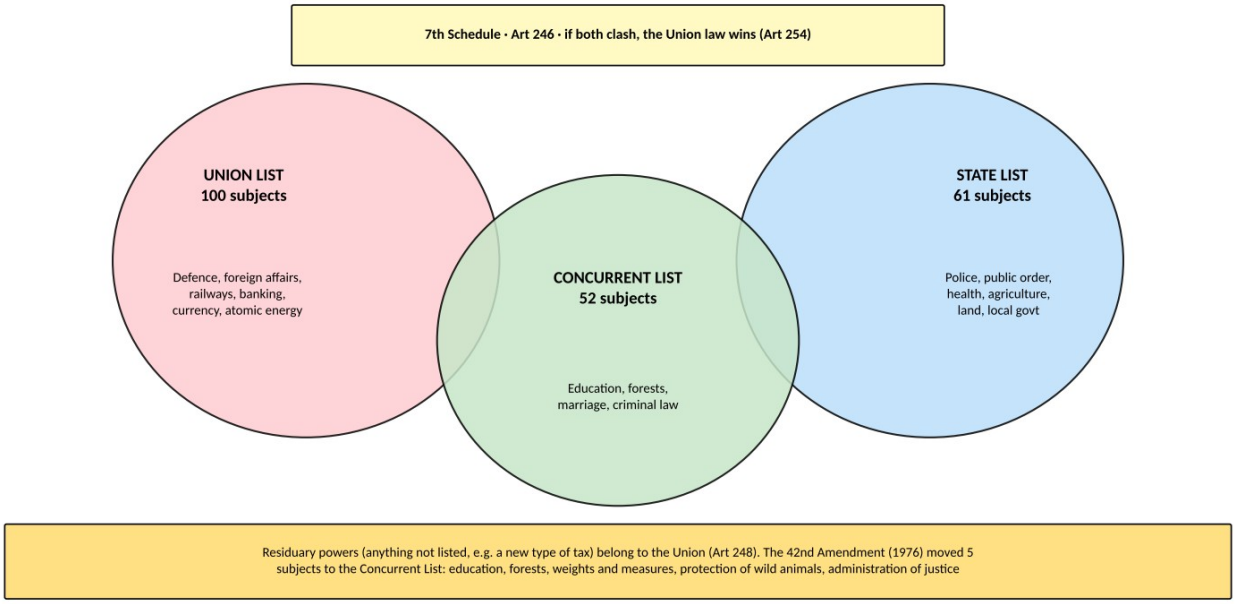


Figure 2: The three Lists of the Seventh Schedule

Article	When Parliament can make laws on the State List
Art 249	Rajya Sabha resolution (**⅔ of members present and voting**) that it is 'necessary in the national interest'; valid for **1 year**, renewable.
Art 250	During a **National Emergency**; ends 6 months after the Emergency.
Art 252	**Two or more States** request it; other States may adopt later. Examples: Prize Competitions Act 1955, Water (Prevention and Control of Pollution) Act 1974.
Art 253	To implement **international treaties**, agreements or conventions (e.g. Bhopal Gas Leak Act 1985; UN Convention laws).
Art 356(1)(b)	During **President's Rule** Parliament makes laws for the State.
Art 254	**Repugnancy:** in a clash on a Concurrent List subject the Union law prevails; but a **State law reserved for the President and assented to** prevails within that State (Art 254(2)).

Doctrines the courts use: *Pith and substance* (look at the true subject of the law, not the side-effects) · *Colourable legislation* (cannot do indirectly what is not allowed directly) · *Harmonious construction* · *Territorial nexus* · *Doctrine of eclipse* (a law void for violating FR is only 'eclipsed' and revives when the bar is removed: **Bhikaji Narain 1955**). **42nd Amendment (1976)** transferred education, forests, weights and measures, wild-animal protection and administration of justice from the State to the **Concurrent List**.

ANDHRA PRADESH LINK

The **AP Reorganisation Act 2014** is itself an Art 3 law: Parliament created Telangana by a simple majority (the Assembly's view is only advisory, as in Babulal Parate 1960). **Education** (a Concurrent subject) explains why both Union (NEP 2020) and AP/Telangana (their own education laws) legislate on schools. **Land** and **irrigation** are State subjects, but **inter-State rivers** (Krishna, Godavari) are under Art 262 and the Union List entry 56, hence the **Krishna and Godavari tribunals** and the **Polavaram** project (declared a National Project by the 2014 Act).

Article	When Parliament can make laws on the State List

EXAM TRAPS

Residuary powers: Centre (India) vs States (USA). Art 249 needs the Rajya Sabha, not the Lok Sabha. Education moved to the Concurrent List by the 42nd Amendment (1976), not the 44th. Art 254(2): a State law can override a Union law only with the President's assent and only in that State.

CHECK YOURSELF

Q. Under which Article can Parliament legislate on a State List subject on a resolution of the Rajya Sabha?
(A) Art 249 (B) Art 250 (C) Art 252 (D) Art 253
Answer: A. Art 249 needs a ⅔ resolution of the Rajya Sabha in the national interest.

2-MINUTE REVISION

Art 1 Union of States, no secession · Wheare: quasi-federal · 7th Schedule: Union 100, State 61, Concurrent 52 · residuary → Union (248) · 249 RS, 250 Emergency, 252 States' consent, 253 treaties, 356 · 254 repugnancy · 42nd Amdt: 5 subjects to Concurrent · Delhi services 2023.

CHAPTER 2 — Administrative Relations and Inter-State Bodies

Articles 256–263, 307, 312, 355

1. Who gives orders to whom?

IN SIMPLE WORDS (what / how / why)

Rule of thumb: laws are made separately, but run together. The Centre makes policy; **States execute most laws**, including many Union laws. So the Constitution gives the Centre ways to see that States cooperate: Art 256 (States must comply with Union laws), Art 257 (Centre can give directions, even on railways or communications), Art 355 (the Centre must protect every State from external aggression and internal disturbance) and the **All-India Services** (IAS, IPS, Indian Forest Service) created under **Art 312**, whose officers serve in States but are controlled by the Centre. This is why **a District Collector in AP or Telangana belongs to the Union's IAS cadre**.

Key fact	Detail
Art 258, 258A	Centre can **delegate** its functions to States (with the State's consent, Art 258A) and States can entrust functions to the Centre.
Art 262	**Inter-State river water disputes:** Parliament can bar courts. Acts: **River Boards Act 1956**, **Inter-State Water Disputes Act 1956**. Tribunals: Godavari (1969), **Krishna Water Disputes Tribunal I (1969) and II (Brijesh Kumar, 2004; award 2010, 2013)**.
Art 263 – Inter-State Council	President can set up a council to discuss common interests. **Sarkaria Commission** recommended a permanent one; set up by **Presidential Order 1990**. **Chair: Prime Minister**; members: all CMs, UT administrators, six Union ministers; Standing Committee chaired by the Union Home Minister.
Zonal Councils	Created by the **States Reorganisation Act 1956** (statutory, not constitutional) — five zones: Northern, Central, Eastern, Western, **Southern (AP, Telangana, Karnataka, Kerala, Tamil Nadu, Puducherry)**. Chair: **Union Home Minister**; CMs are vice-chairs by rotation. **North-Eastern Council** (1971): separate Act.
NITI Aayog	Replaced the **Planning Commission (1950)** on **1 Jan 2015**; a think-tank for 'Team India', not a financier; **Governing Council**: PM + all CMs; promotes cooperative federalism (e.g. State Support Mission). **NDC** (1952) was abolished with the Planning Commission.
Other links	Art 307: Parliament may set up an **inter-State trade and commerce** authority · **Art 301–305** freedom of trade · **Art 261** full faith and credit to public acts · **Art 260** Union jurisdiction in foreign territories.

ANDHRA PRADESH LINK

Krishna and Godavari water sharing is the biggest Centre–State and inter-State issue in the Telugu States: the **Brijesh Kumar tribunal (KWDT II)** divided the water between Maharashtra, Karnataka and (undivided) AP; after 2014, the Krishna and Godavari **River Management Boards (KRMB, GRMB)** were set up under the AP Reorganisation Act to manage the projects of AP and Telangana (Srisailam, Nagarjuna Sagar, Pulichintala). The **Southern Zonal Council** is the forum where AP and Telangana raise bifurcation issues (Schedule IX and X institutions, employees, power dues).

CHECK YOURSELF

Q. The Inter-State Council was set up in 1990 on the recommendation of:
(A) Rajamannar Committee (B) Sarkaria Commission (C) Punchhi Commission (D) ARC 1966
Answer: B. Sarkaria recommended a permanent Council under Art 263.

EXAM TRAPS

Zonal Councils are statutory (1956 Act); Inter-State Council is constitutional (Art 263) but set up by order. Planning Commission 1950 → NITI Aayog 2015. Chair of Zonal Council = Union Home Minister; chair of Inter-State Council = Prime Minister.